Hada Fernandez/SBN 207127
Chris Stefan/SBN 257516
Noemi Padilla/SBN 343367
Persolve Legal Group, LLP
California Debt Collection License #10926-99.
9301 Corbin Avenue, Suite 1600
Northridge, CA 91324
866-438-1259; 818-534-3100; 818-534-3140 (FAX)
Refer to File Number: C2302217
Attorneys for Plaintiff

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SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

CIVIC CENTER COURTHOUSE

CROWN ASSET MANAGEMENT, LLC, Plaintiff, vs. DANIEL E FADDIS, an individual; and DOES 1-100, inclusive, Defendants.	CASE NO. **CGC-24-611338** **COMPLAINT FOR MONEY BASED ON:** **1) Open Book Account;** **2) Money Lent; and** **3) Account Stated.** Amount Demanded: $4,841.47

Plaintiff CROWN ASSET MANAGEMENT, LLC ("Plaintiff"), complains and alleges as follows:

1. This suit concerns a credit card account that was purchased by CROWN ASSET MANAGEMENT, LLC, the successor in interest to WebBank ("Original Creditor") after January 1, 2014, and therefore, is subject to California Civil Code section 1788.50, et seq. Pursuant to California Civil Code section 1788.58(a)(1) - (9):

2. CROWN ASSET MANAGEMENT, LLC is a debt buyer. California Debt Collection License #10926-99.

3. WebBank issued a credit card account to Defendant(s). Defendant(s) used, or authorized the use of, the credit card account to make purchases and/or transactions. Defendant(s) received periodic billing statements for the credit card account. Defendant(s) defaulted in making the required payments. Subsequently, the credit card account was assigned to Plaintiff and all right, title and interest in the credit card account were transferred to Plaintiff. WebBank is the charge-off creditor.

4. CROWN ASSET MANAGEMENT, LLC is the sole owner of the account at issue.

5. August 19, 2022 is the last payment date before charge off. See Exhibit "1" attached hereto. The account remained open until it was charged off on February 27, 2023, with a balance of $4,841.47. There is now due and owing to Plaintiff the unpaid sum of $4,841.47. No post charge off interest or fees are included in this sum.

6. The last known address that the charge-off creditor had for Defendant(s) is: DANIEL E FADDIS, 98 Silverview Drive, San Francisco, CA 94124.

7. Prior to the commencement of this action, WebBank, 215 SOUTH STATE STREET, SALT LAKE CITY, UT 84111, who was the creditor at charge off, for valuable consideration, assigned, transferred, and set over to CROWN ASSET MANAGEMENT, LLC, 3100 BRECKINRIDGE BLVD STE 725, Duluth, GA 30096, WebBank account number ********8567 ("the within indebtedness"). Plaintiff is now the holder of the assigned rights in its chose in action of said claims and the sole owner of the debt at issue.

8. Plaintiff has complied with section 1788.52 of the California Civil Code.

FIRST CAUSE OF ACTION

(Open Book Account Against All Defendants)

9. Plaintiff repeats, re-alleges and incorporates herein by reference the allegations for paragraphs 1 through 8, inclusive, as though set forth at length herein.

10. At all times mentioned herein, Plaintiff, CROWN ASSET MANAGEMENT, LLC was, and is, a Limited Liability Company formed and maintained under and pursuant to the laws of the State of Georgia, and has complied with all requirements to transact business in the State of California.

11. Prior to the commencement of this action, Plaintiff is the successor in interest to WebBank, who for valuable consideration, assigned, transferred, and set over to Plaintiff, the within indebtedness of the Defendant(s) and Plaintiff is now the holder of the assigned rights in said claims.

12. This cause of action is being brought in this jurisdiction and venue due to the fact that the Defendant(s) currently reside(s) here.

13. The true names and capacities of Defendant DOES 1 through 100, inclusive, are unknown to Plaintiff at this time, who therefore sues said Defendants by such fictitious names. Plaintiff is informed and believes, and thereon alleges, that each Defendant named as a DOE is responsible for each and every obligation hereinafter set forth.

14. Plaintiff is further informed and believes, and thereon alleges, that each Defendant named in this Complaint, was at all times herein mentioned, and now is, the agent and employee of each of the other Defendants herein, and was at all such times acting within the course and scope of said agency and employment.

15. Plaintiff is informed and believes, and thereupon alleges, that at all times herein mentioned, the Defendant(s), and each of them, is responsible in some manner for the occurrences herein alleged, and that the Plaintiff's damages, as hereinafter alleged, were proximately caused by the acts of such Defendant(s), and each of them.

16. The within action is not subject to the provisions of Section 2981, et seq., (Rees-Levering Act) and Section 1801, et seq., (Unruh Act) of the Civil Code of the State of California.

17. Within the last four years, Defendant(s) and each of them, became indebted to the Original Creditor on an open book account per California Code of Civil Procedure section 337a, in the sum of $4,841.47.

18. There is now due and owing to Plaintiff the unpaid sum of $4,841.47.

SECOND CAUSE OF ACTION

(Money Lent Against All Defendants)

19. Plaintiff repeats, re-alleges and incorporates herein by reference the allegations for paragraphs 1 through 18, inclusive, as though set forth at length herein.

20. Within the last four years, Defendant(s), and each of them, became indebted to the Original Creditor in the principal amount of $4,841.47, for money advanced, lent, paid, laid out and/or expended to said Defendant(s), and each of them, and/or for the benefit of Defendant(s), and each of them, at the specific request and/or direction of Defendant(s), and each of them.

21. There is now due and owing to Plaintiff the unpaid sum of $4,841.47.

THIRD CAUSE OF ACTION

(Account Stated Against All Defendants)

22. Plaintiff repeats, re-alleges and incorporates herein by this reference all allegations set forth in paragraphs 1 through 21 inclusive, as though set forth at length herein.

23. Within the last four years, an account was stated by and between the Original Creditor and Defendant(s), and each of them, and it was agreed that the principal sum stated of $4,841.47 was due and owing.

24. No part of said sum has been paid since August 19, 2022, although demand for full payment has been made. There is now due and owing to Plaintiff the unpaid sum of $4,841.47.

WHEREFORE, Plaintiff prays for Judgment against Defendant(s), and each of them, as follows:

AS TO ALL CAUSES OF ACTION:

1. For damages in the principal sum of $4,841.47;
2. For costs of suit incurred herein; and
3. For such other and further relief as the Court may deem just and proper.

Dated: 12/29/2023

Persolve Legal Group, LLP

By: Chris Stefan

❑ NOEMI PADILLA/SBN 343367
❑ CHRIS STEFAN/SBN 257516
❑ HADA FERNANDEZ/SBN 207127
Attorney for Plaintiff

EXHIBIT 1

Petal Credit Card Statement

Petal 2 VISA® Credit Card
DANIEL ERIC FADDIS - Card Ending in - *7610
Bill Period: 08/01/2022 - 08/31/2022

Payment Information

New Balance	Payment Due Date	Minimum Payment Due
$4,464.66	09/26/2022	$286.93

Late Payment Warning:
If we do not receive your minimum payment by your due date, your account will be treated as past due and this may negatively affect your credit score.

Minimum Payment Warning:
If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance.

If you make no additional charges using this card and each month you pay	You will pay off the balance shown on this statement in about	And you will end up paying an estimated total of
Only the minimum payment	10 year(s)	$6,932.86
$153.35	3 year(s)	$5,520.60 (Savings= $1,412.26)

If you would like information about credit counseling services, call: (855) 697-3825

Account Summary

Previous Balance	$4,676.37
Payments	- $271.14
Other Credits	- $0.00
Purchases	+ $0.00
Interest Charged	+ $59.43
New Balance	**$4,464.66**
Credit Limit	$4,500.00
Credit Limit Available	$35.34
Statement Closing Date	08/31/2022
Days in Billing Cycle	31
Past Due Amount	$142.24

- Pay or manage your account on www.petalcard.com or on our mobile app.
- Toll Free: (855) 697-3825 International: (917) 267-2582
- Send all check payments to: P.O. Box 1150 New York, NY 10008-1150.

- See reverse for Important Information

Petal Payment Coupon

CARD REFERENCE NUMBER 325025998567

Card Account Number	Statement Date	New Balance	Minimum Amount Due	Payment Due Date
418940******7610	09/01/2022	$4,464.66	$286.93	09/26/2022

How to Pay by Check:
Please send us this portion of your statement with your check or money order. If you are not using the Payment Coupon, please include your Card Reference Number 325025998567 when paying separately with a check. **To be credited as an on time payment, checks must be received by 5:00 pm ET on the due date. Please allow at least 5-7 business days for delivery and processing (holidays may result in processing delays).**

Amount Enclosed $

DANIEL ERIC FADDIS
98 Silverview Drive
San Francisco, CA 94124 USA

PLEASE SEND ALL CHECKS TO:
Petal
P.O. Box 1150
New York, NY 10008-1150

Information about your Petal Card

Making a payment

You may make payment in several ways:

Online through the Petal website or the Petal mobile applications for approved electronic devices Calling the telephone number listed on the front of this statement and providing the required payment information and Sending a check to Petal Card Inc. by mail to the address on the front of this statement with the payment coupon or the last four digits of your account number. All payments must be in US dollars in the form of a bank transfer/ACH or a check from a US bank account. You agree not to send us any post dated checks. If you do, we may deposit it immediately upon receipt, despite the later date on the check. We will not accept any payments made in cash. If payment does not conform to these payment instructions, crediting will be delayed or may be refused, and additional charges may be imposed.

When will you credit my Payment?

For online payments made on the Petal website or mobile application, or payments made over the phone, payments will be credited as of the day the payment is made, as long as it is made by 8 p.m. Eastern Time. Payments received after the applicable cut-off time will be treated as received as of our next business day. For mail or other payments, payments will be credited as of the business day we receive it, as long as it is received by 5 p.m. Pacific Time. Please allow at least seven (7) business days for mail delivery. Mailed payments received by us at any other location or payments in any other form may not be credited as of the day we receive them. Payments received after the applicable cut-off time will be treated as received as of our next business day. If the payment due date falls on a weekend or holiday, we will treat any payment received by the applicable cut-off time in accordance with these payment instructions on our next business day as being received by us on the due date.

Account Information Reported to Credit Bureaus

We may report information about your account to credit bureaus. Late payments, missed payments or other defaults on your account may be reflected in your credit report. You have the right to dispute the accuracy of information we have reported. If you think any information about your account that we have reported to a credit bureau is incorrect, you can notify us by writing to Petal Card, Inc., MSC - 166931, P.O. Box 105168, Atlanta, GA 30348-5168, Attn: Credit Reporting. Please include your name, address, phone number, and a brief description of the issue. You also may call us toll-free at 1-855-697-3825 or send an email to support@petalcard.com with the subject line "CREDIT REPORTING ISSUE".

You may, at any time, pay the full amount you owe without incurring any additional charges.

Authorization to convert your check to electronic transfer debit

When you provide a check or check information to make a payment, you authorize us to use information from the check to make a one-time ACH or other electronic transfer from your bank account. We may also process it as a check transaction. Funds may be withdrawn from your bank account as soon as the same day we process your payment.

Disputed Payments

Any check or other form of payment that you send us for less than the full balance due that is marked "paid in full" or contains a similar notation, or that you otherwise tender in full satisfaction of a disputed amount, must be sent to Petal Card, Inc., MSC - 166931, P.O. Box 105168, Atlanta, GA 30348-5168, Attn: Disputed Payments. We reserve all our rights regarding these payments (e.g., if it is determined that there is no valid dispute or if any such check is received at any other address, we may accept the check and you will still owe any remaining balance). We may refuse to accept any such payment by returning it to you, not cashing it or destroying it. All other payments that you make should be set to the regular Payment address shown on this statement.

How do you calculate the Interest Charges?

We use a method called Average Daily Balance (including new transactions). Please refer to your Cardholder Agreement for more detailed information, but generally:

1. The total interest charged for a billing period, except for variations caused by rounding, equals: Average Daily Balance ("ADB"), multiplied by Daily Periodic Rate ("DPR"), multiplied by the number of days in the billing period.
2. We calculate the ADB by calculating the daily balance for each day of the billing period (first, taking the beginning balance of your account on that day, then adding in new transactions, then adding any periodic interest charge on the previous day's balance, then subtracting any payments and credits on that day (note, we treat any net credit balance as a zero balance) and then adding the daily balances together for each day of the billing period, then dividing this sum by the number of days in the billing period.
3. We calculate the DPR by taking your APR and dividing the APR by 365.

How can my Variable APR change?

Your APRs will vary based on the Prime Rate + margin as reported in the Wall Street Journal. For more detailed information about variable rates, see your cardholder agreement.

How can I avoid paying Interest Charges on purchases?

Your due date is at least 25 days from the statement closing date. If you pay your account in full each billing period, no interest will be charged. Additionally, if either (a) you paid the New Balance stated on your current billing statement in full by the Payment Due Date shown on that billing statement or (b) your New Balance on your current billing statement is zero or a credit (less than zero), then you will not be charged any interest during the current billing period. If you pay the New Balance on your current billing statement by the Payment Due Date shown on that billing statement, we will also not impose interest charges on New Purchases. New Purchases are Purchases that first appear on the next billing statement. Certain promotional offers may allow you to avoid paying interest charges in other situations.

What To Do If You Think You Find A Mistake On Your Statement:

If you think there is an error on your statement, you can notify us by writing to Petal Card, Inc., MSC - 166931, P.O. Box 105168, Atlanta, GA 30348-5168, Attn:Billing Dispute. You also may call us toll-free at 1-855-697-3825 or send an email to support@petalcard.com with the subject line "DISPUTE".

In your written or emailed dispute, give us the following information:

- Account information: Your name and last four digits of your account number.
- Transaction information: The dollar amount(s) and date(s) of the suspected error.
- Description of problem: If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake.

You must contact us within sixty (60) days after the error appeared on your statement. You must notify us of any potential errors in writing or by email. You may call us, but if you do, we are not required to investigate any potential errors and you may have to pay the amount in question. We will notify you within thirty (30) days of our receipt of your written or emailed dispute. While we investigate whether or not there has been an error, the following are true:

- We cannot try to collect the amount in question, or report you as delinquent on that amount. The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
- While you do not have to pay the amount in question until we send you a notice about the outcome of our investigation, you are responsible for the remainder of your balance.
- We can apply an unpaid amount against your credit limit. Within ninety (90) days of our receipt of your written or emailed dispute, we will send you a written notice via U.S. Post and email, explaining either that we corrected the error (to appear on your next statement) or the reasons why we believe the bill is correct.

Your Rights If You Are Dissatisfied With Your Purchase:

If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase. To use this right, the following must be true:

1. The purchase must have been made in your home state or within 100 miles of your current mailing address, and the purchase price must have been more than $50. (Note: Neither of these are necessary if your purchase was based on an advertisement we made to you, or if we own the company that sold you the goods or services).
2. You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify.
3. You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, you can notify us by writing to MSC - 166931, P.O. Box 105168, Atlanta, GA 30348-5168, Attn: Purchase Dissatisfaction. While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay, we may report you as delinquent.

How do I Close my Account?

You may contact Customer Support anytime at 1-855-697-3825 to request that we close your account. You will still be responsible to pay any outstanding balance.

New York State Residents

New York residents may contact the New York State Department of Financial Services to obtain a comparative listing of credit card rates, fees, and grace periods. Contact the New York State Department of Financial Services: 1-800-342-3736 or visit www.dfs.ny.gov.

The Petal credit card is issued by WebBank, Member FDIC. Your account is serviced by Petal Card, Inc.

[DANIEL ERIC FADDIS] Card ending in *7610

Posted Date	Transaction Date	Description	Amount(USD)
Payments and Adjustments			
08/19/2022	08/19/2022	ACH Payment from Bank of America account ending 2335	- $271.14
		Total Payments and Adjustments for this Period	**- $271.14**
Purchases and Adjustments			
		Total Purchases and Adjustments is $0 for card ending in 7610	
Interest Charged			
09/01/2022	09/01/2022	Interest Charge	$59.43
		Total Interest Charged for this Period	**$59.43**

2022 Totals Year-to-Date

Total Interest Charged in 2022

$451.12

Interest Charge Calculation

Type of Balance	Annual Percentage Rate (APR)*	Balance Subject to Interest Rate	Total Interest Charged
Purchases	15.24%	$4,591.79	$59.43

*Your APR is your annual interest rate, and is variable and can change based on the Prime Rate. Your APR is calculated using the Average Daily Balance method.

(v) = Variable

Total Interest Charged = Interest Charged on Average Daily Balance + Interest Adjustments

If the payment for the full statement balance is received on or before 5pm ET on the due date, there will be no interest charges on transactions that occurred in this billing cycle. **If you do not make this payment, you may be subject to additional interest charges.**

Petal

P.O. Box 1150 New York,
NY 10008-1150

Customer Service

support@petalcard.com
Toll Free: (855) 697-3825